

24VECV02505 24VECV02505

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-06-23

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Case Number: 24VECV02505 Hearing Date: June 23, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RICHARD GAMEZ, an individual,

Plaintiff,

vs.

CITY OF LOS ANGELES, a public entity does 1 to 50, inclusive.

Defendant.

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CASE NO.: 24VECV02505

ORDER DENYING CROSS-DEFENDANT NATTAPOL RUTAYAPAKUL'S MOTION FOR SUMMARY JUDGMENT

CITY OF LOS ANGELES, a municipal corporation,

Plaintiff,

vs.

ROES 1-10, inclusive.

Defendant.

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I. BACKGROUND

Plaintiff Richard Gamez ("Plaintiff") filed this premises liability action against Defendant City of Los Angeles ("City"). Plaintiff alleges City negligently maintained the sidewalk in a dangerous condition causing him to trip and fall.

City filed a cross complaint against Nattapol Rutayapakul ("Rutayapakul").

Rutayapakul moves for summary judgment on Plaintiff's Complaint.

II. PROCEDURAL HISTORY

On May 29, 2024, Plaintiff filed a Complaint alleging (1) Negligence and (2) Premises Liability.

On July 12, 2024, Plaintiff filed a First Amended Complaint ("FAC").

On October 17, 2024, City filed an Answer and Cross Complaint alleging (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On February 7, 2025, City filed an Amendment to Cross Complaint to designate Rutayapakul as Roe 1.

On May 11, 2026, Rutayapakul filed the instant Motion.

On June 1, 2026, Plaintiff filed an Opposition.

As of June 22, 2026, no reply has been filed.

Trial is scheduled August 31, 2026.

III. LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In analyzing such motions, courts must

apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (See Code Civ. Proc. § 437c(c); [1] Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

IV. ANALYSIS

A. Timeliness/Procedural Issue

A motion for summary judgment requires 81 days’ notice plus 2 court days if the motion is served by email. (See Code Civ. Proc. § 437c(a)(2).) A motion for summary judgment cannot be heard later than 30 days before the date set for trial unless the court orders otherwise for good cause shown. (See *id.*, § 437c(a); see *Beroiz v. Wahl* (2000) 84 Cal.App.4th 485, 493, fn. 4 [time limit not jurisdictional because court has power to permit later hearing]; *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268 [court must make separate order finding “good cause” before motion filed].)

Plaintiff argues the Motion should be denied in its entirety because Rutayapakul did not comply with the notice requirements of § 437c(a)(2). (See Opp. at 3:13-17.)

The Court will deny the Motion. Based on the Motion’s noticed hearing date of June 23, 2026, this Motion should have been served by email no later than April 1, 2026. Here, Rutayapakul served his Motion on May 11, 2026 by email. (See Mot., Proof of Service.) Thus, Rutayapakul did not comply with the notice requirements of § 437c(a)(2).

The Court also notes the latest it could hear this Motion based on the scheduled trial date is August 1, 2026, yet Rutayapakul never sought to move the noticed hearing date so as to comply with section 437c(a)(2)’s notice requirements.

Based on the foregoing, the Court DENIES Rutayapakul’s Motion for Summary Judgment.

V. CONCLUSION

Based on the foregoing, the Court DENIES Rutayapakul’s Motion for Summary Judgment.

IT IS SO ORDERED.

DATED: June 23, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.